

White Oak Neighbors Association, et al. v. John W. Fitzgerald, et al., 24CVP-0043

Hearing: Motion for Summary Adjudication

Date: September 17, 2026

TENTATIVE RULING

This is a dispute between neighbors regarding access to a road in their subdivision called White Oak Road (the Road). On February 1, 2024, White Oak Neighbors Association (Plaintiff) filed a lawsuit against Defendants John W. Fitzgerald, Dawn L. Fitzgerald, (collectively referred to as the Fitzgeralds) and Barry Patrick Fagan (Fagan). The complaint sought to establish the rights of neighbors to use the Road and preclude the Fitzgeralds and Fagan from obstructing their use of the Road.

On January 22, 2026, Rob A. Garcia and Deborah L. Donnelly (collectively referred to as Intervenor) filed a complaint in intervention against the Fitzgeralds and Fagan alleging causes of action for 1. Interference with Right of Way; 2. Abatement of Continuing Nuisance; 3. Declaratory Relief; 4. Prescriptive Easement; and 5. Equitable Easement. (Intervenor Complaint).

Before the Court is Intervenor's Motion for Summary Adjudication of the First Cause of Action for Interference with Right of Way and Third Cause of Action for Declaratory Relief (MSA). Plaintiff filed a Notice of Support for the MSA. The Fitzgeralds and Fagan oppose the motion on the ground that there are triable issues of material fact.

I. LEGAL STANDARD

Summary judgment is proper when there are no triable issues of material fact and the moving party is entitled to a judgment as a matter of law. (§ 437c(c).)¹ Plaintiff, as the moving party, has the initial burden to make a prima facie showing that there are no triable issues of material fact and they are entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*)). Intervenor must present evidence proving each element of their causes of action but are not required to disprove any defense asserted by the defendants. (Code Civ. Proc. §§ 437c, subds. (p)(1) and (o)(1).) If a plaintiff proves each element of a cause of action the burden shifts to the opposing party to show that a triable issue of material fact exists as to an element or defense at issue. (*Aguilar*, supra, 25 Cal.4th at 853.)

The party opposing summary judgment need only raise a triable issue of material fact to defeat the motion. Further, the Court must consider all inferences reasonably drawn from all evidence and must view the evidence in the light most favorable to the opposing party. (*Aguilar*, supra, 25 Cal.4th at 843.) However, "those inferences must be reasonably deducible from the evidence, and

¹ Further statutory references are to the Code of Civil Procedure unless otherwise noted.

not such as are derived from speculation, conjecture, imagination, or guesswork. [Citation.]” (*Joshi v. Fitness International, LLC* (2022) 80 Cal.App.5th 814, 823 [citation omitted].) The “court may not weigh the plaintiff’s evidence or inferences against the defendants’ as though it were sitting as the trier of fact.” (*Aguilar*, supra, 25 Cal.4th at 856.)

II. IMPLIED EASEMENT BY RECORDED MAP

Intervenors seek “a judicial declaration affirming Intervenors and other landowners and their guests and invitees right to use White Oak Road.” (Intervenor Complaint, ¶ 39.) They submit evidence that they own a lot created when Oak Ridge Orchard Company recorded the Oakridge Orchard Subdivision No. 3 map (Map) which designates Orchard Avenue, later renamed White Oak Road.² They cite authority that recording a subdivision map duly signed and acknowledged by the owner grants each lot depicted in the map an appurtenant right to use each road depicted on the map. (Motion, p. 3, lns. 12-19.)

“It is a thoroughly established proposition in this state that when one lays out a tract of land into lots and streets and sells the lots by reference to a map which exhibits the lots and streets as they lie with relation to each other, the purchasers of such lots have a private easement in the streets opposite their respective lots, for ingress and egress and for any use proper to a private way, and that this private easement is entirely independent of the fact of dedication to public use, and is a private appurtenance to the lots, of which the owners cannot be divested except by due process of law. [Citations.]” (*Danielson v. Sykes* (1910) 157 Cal. 686, 689, 109 P. 87; *Tract Development Services, Inc. v. Kepler* (1988) 199 Cal. App. 3d 1374, 1381–82 (*Tract Development*).)

Unlike easements created by express agreement or prescriptive or adverse use, the location of easements created by recorded map are determined by the map, not by agreement or historic use. Evidence that Intervenors and other neighbors have used areas of Fagan’s and the Fitzgeralds’ property other than the Road designated on the Map is not relevant to the location of the easements at issue. (See, *Sumner Hill Homeowners’ Association, Inc. v. Rio Mesa Holdings, LLC* (2012) 205 Cal.App.4th 999, 1029 [no judicial action necessary to establish easement by recorded tract map].) Neither Intervenors nor Fagan or the Fitzgeralds have asserted a claim for implied relocation of the easements. (See, *Red Mountain, LLC v. Fallbrook Public Utility District* (2006) 143 Cal.App.4th 333, 352 [“Parties may change the location of an easement by mutual consent, which may be implied from use and acquiescence.”].) Likewise, permission and necessity are not defenses to an easement created by recorded parcel map.³

Interpretation of the scope and uses of an easement by recorded map is a judicial function “though it involves what might properly be called questions of fact....” (*Schmidt v. Bank of America, N.A.* (2014) 223 Cal.App.4th 1489, 1499–1500.) “[E]ach owner enjoys an easement which is not simply an easement over an abutting owner’s land, but which is an easement over the land of

² Intervenors’ request for judicial notice of four declarations filed by the Fitzgeralds and Fagan in connection with earlier proceedings is granted.

³ Intervenors are not seeking summary adjudication of their prescriptive easement or equitable easement claims.

nonabutting owners; the whole of the subdivision is in essence the servient tenement to each lot, and each lot is servient to every other lot.” (*Tract Development*, supra, 199 Cal.App.3d at 1384.)

An implied easement by subdivision is broad and includes “ingress and egress and [] any use proper to a private way.” (*Danielson v. Sykes*, supra, 157 Cal. at 689.) There is nothing in the Map indicating use of roads is limited to vehicular traffic. Pedestrian use is a proper use of a private way. (See, e.g., *Hill v. Allan* (1968) 259 Cal.App.2d 470, 486.)

Fagan and the Fitzgeralds submit no evidence showing Intervenorors have been divested of the easement by due process of law. They argue that the easements have been abandoned, and Fagan argues that Intervenorors’ claim is barred by the doctrine of unclean hands. The burden is on Fagan and the Fitzgeralds to present evidence from which a trier of fact could find the easements have been abandoned or are barred by the doctrine of unclean hands.

III. DECLARATORY RELIEF

The elements of a claim for declaratory relief are set forth in relevant part in section 1060 as follows:

Any person ... who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, ..., may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time.

The plaintiff seeking declaratory relief must show “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) Intervenorors allege there is a controversy as to their right to use the portions of the Road depicted on the Map that cross Fagan’s and the Fitzgeralds’ properties.

Neither Fagan nor the Fitzgeralds deny that Intervenorors’ right to the easements is a proper subject for declaratory relief and there is an actual controversy involving justiciable questions because Fagan and the Fitzgeralds have erected obstructions in the easements. The only relief prayed for as to the Third Cause of Action is “a declaratory judgment that White Oak Road is a private easement in favor of all owners of land within the 1918 Map and their guests and invitees.” There is no claim for judicial declarations as to specific future uses, nor can the Court speculate as to what those uses and the parties’ rights might be.

1. Fagan's Opposition

Fagan argues that the Road exists on the Map only and has never existed on his property. Fagan cites no authority and the Court finds none holding that the continued existence of an easement implied by recordation of a map is conditioned on use or necessity. The cases Fagan cites do not involve easements created by recorded parcel maps. (See, Fagan Opposition citing *Bustillos v. Murphy* (2002) 96 Cal.App.4th 1277 [recreational prescriptive easement]; *Wall v. Rudolph* (1961) 198 Cal. App. 2d 684 (express easement); *People v. Ocean Shore Railroad* (1948) 32 Cal.2d 406 [railroad easement]; *Fletcher v. Stapleton* (1932) 123 Cal.App. 133 [express right of way]; *Zimmerman v. Young* (1946) 74 Cal.App.2d 623 [judgment enforcing contractual and recorded map easement affirmed despite disuse]; *Scruby v. Vintage Grapevine, Inc.* (1995) 37 Cal.App.4th 697 [express easement]; *Wang v. Peletta* (2005) 112 Cal.App.5th 478 [prescriptive and equitable easement].)

Cases involving easements created by recorded parcel maps hold that “the right to an easement created in this manner cannot be lost by mere nonuse, nor because the easement is not necessary for access to the dominant tenement.” (*Tract Development*, supra, 199 Cal.App.3d at 1382 [citing *Petitpierre v. Maguire* (1909) 155 Cal. 242, 250].) The alleged easement is appurtenant to every lot depicted on the map, including Fagan's and is reciprocal with regard to lots burdened by the Road. “It has long been the law in California that plat maps may be used to precisely define an easement, and when an easement is defined by a map, it is decisive.” (*Ranch at the Falls LLC v. O'Neal* (2019) 38 Cal.App.5th 155, 175.)

Fagan contends that the portion of the Road depicted on his property has been abandoned by nonuse and use of another route. This argument cannot be considered because “summary judgment cannot be denied on a ground not raised by the pleadings.” (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 290 [citation omitted].) Fagan has not pled abandonment as an affirmative defense. (See, *Bradley v. Frazier Park Playgrounds* (1952) 110 Cal.App.2d 436, 443 [abandonment defense not considered where not alleged as defense].)⁴

Even if abandonment was at issue, it “hinges upon the intent of the owner to forego all future conforming uses of the property, and there must be conduct demonstrating that intent which is so decisive and conclusive as to indicate a clear intent to abandon.” (*Tract Development*, supra, 199 Cal.App.3d at 1385 [citation omitted]; *Bradley v. Frazier Park Playgrounds*, supra, 110 Cal.App.2d at 443-444 [non-use not proof of abandonment].) Fagan presents no evidence Intervenor intended to abandon the easement.

⁴ “If the opposing party's evidence would show some factual assertion, legal theory, defense or claim not yet pleaded, that party should seek leave to amend the pleadings before the hearing on the summary judgment motion. [Citations.]” (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1253 [citation omitted]; see also, *Huntsman-W. Found. v. Smith* (2024) 104 Cal.App.5th 1117, 1133 [summary judgment motion could not be denied on issues not raised by the pleadings].)

Fagan contends he has presented evidence disputing Intervenor's Undisputed Material Facts (UMF) 11, 13, 14, 15, and 16. His supporting evidence is (1) his December 13, 2024, declaration in opposition to Motion for Preliminary Injunction, (2) a Criminal Protective Order for Fagans against Leader issued on 20 November 2025, and (3) Judge Garrett's ruling on Request for Temporary Injunction dated 10 January 2025.⁵

The cited evidence is not sufficient to raise a triable issue. As to UMF 11, evidence that Mr. Leader trespassed to bypass Fagan's gate does not raise a triable issue as to whether Fagan's gate blocks neighbors' access to the easement. As to UMF 13, Fagan states "Natural forces have also greatly impacted conditions on some portions of the EASEMENT" but offers no evidence in support. As to UMFs 14 and 15, Fagan offers evidence that the Road is not necessary because lot owners have other access, but necessity is not relevant to whether the easement is beneficial. As to UMF 16, Fagan offers no admissible evidence that an all-weather accessible roadway could not be constructed within the easement.

Fagan asserts additional facts but does not specify how or why they are relevant and most of the facts are irrelevant to the type of easement at issue. The easement exists as depicted on the Map and evidence such as dead-end signs and driveways encroaching on the easement do not raise triable issues unless they support an affirmative defense.

The only affirmative defense pled by Fagan and discussed in his opposition is unclean hands. Fagan provides additional facts and evidence that the group of lot owners which formed to be the Plaintiff in this case was led by non-party David Allen Leader who was convicted of a felony based on misconduct directed at Fagan. Fagan argues Intervenor's have unclean hands because they were part of the lot owner group and ratified Mr. Leader's criminal conduct. There is no evidence supporting Intervenor's alleged ratification of Mr. Leader's conduct nor legal authority cited.

"The 'unclean hands' doctrine is often invoked but rarely applicable." (*Estates of Collins & Flowers* (2012) 205 Cal.App.4th 1238, 1241.) An unclean hands defense requires inequitable conduct by the plaintiff in connection with the matter in controversy and "does not apply in every instance where the plaintiff has committed some misconduct in connection with the matter in controversy, but applies only where it would be inequitable to grant the plaintiff any relief." (*Dickson, Carlson & Campillo v. Pole* (2000) 83 Cal.App.4th 436, 446–47 [citations omitted].) In other words, it applies where the plaintiff engaged in misconduct that gives an unfair advantage in his claims against the defendant.

⁵ There is no need for the Court to take judicial notice of filings that are already a part of the Court's record, although it has discretion to do so. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 705.) A court may take judicial notice of the existence of documents in its file, including the truth of results reached, but may not take judicial notice of the truth of hearsay statements in decisions and court files. (*In re Vicks* (2013) 56 Cal.4th 274, 314.) Fagan's request for judicial notice of the entire file in this case is granted, although Fagan fails to specify any particular documents. The request for judicial notice of the Felony Conviction of David Leader is also granted.

In *Bennett v. Lew* (1984) 151 Cal.App.3d 1177, the appellate court affirmed a judgment denying the unclean hands defense where the defendant erected a fence to block the plaintiff's access to an easement. Although the plaintiff engaged in misconduct such as yelling at construction workers, throwing tools, and removing fence posts, such conduct did not bar his easement claim.

Likewise Fagan's additional fact number 15 which states "Leader described he, Rob Garcia, Ed Bik, and Mike Tindell were all involved in removing oak trees and opening up the trail without permission on Fitzgerald's property," is not a basis for an unclean hands defense. While such conduct may support claims for trespass or removing trees without permission (see, e.g., *Kallis v. Sones* (2012) 208 Cal.App.4th 1274), it is not connected to whether Intervenor has an enforceable easement. Intervenor gained no inequitable advantage in their declaratory relief claim by being members of Plaintiff's lot owner group or cutting down trees on Fagan's property.

2. Fitzgeralds' Opposition

The Fitzgeralds contend the declaratory relief cause of action fails because Intervenor has not submitted "competent evidence from which the Court could determine the creation, location, scope, appurtenant character, and present enforceability of the specific easement for which they seek a declaration." (Fitzgerald Opposition, p. 3, ln. 26-p. 4, ln. 1.) The Court disagrees and finds that the evidence submitted by Intervenor is sufficient.

The recorded Map and deeds to Intervenor's property, as well as the Declaration of Kevin Irot, allow the Court to determine the creation, location, scope, and appurtenant character of Intervenor's right to use the Road as depicted on the Map. It is the Fitzgeralds, rather than Intervenor, who claim the easement has moved from the location depicted on the Map. As explained above, the summary adjudication motion is limited to claims and defenses raised in the pleadings. Intervenor alleges a claim to the easement depicted on the Map.

The cases cited by the Fitzgeralds support rather than contradict Intervenor's declaratory relief claim. In *Tract Development Services, Inc. v. Kepler* (1988) 199 Cal.App.3d 1374, the purchaser of subdivision lots sued the adjoining lot owner to assert its right to use streets described in a subdivision map. The adjoining lot owner had erected a fence enclosing a portion of the easement. The appellate court affirmed the trial court's judgment in favor of the plaintiff that the private easement created by recording the subdivision map was neither abandoned nor extinguished. (See, also, *Danielson v. Sykes* (1910) 157 Cal. 686 [judgment for defendant reversed].)

In short, Intervenor does not seek to establish an easement in any location other than the location depicted on the Map. There is no issue of material fact regarding the location of the easement. Nor is there a triable issue regarding the scope of the easement which is, as a matter of law, "ingress and egress and [] any use proper to a private way." (*Danielson v. Sykes*, supra, 157 Cal. at 689.)

The Fitzgeralds contend that equitable enforcement is not automatic where a remote street provides no material benefit to the particular lot, citing *Danielson v. Sykes*. (Fitzgerald Opposition, p. 7, lns. 14-24.) However, the appellate court in *Danielson v. Sykes* reversed judgment for the

defendant and entered an injunction against closing the easement, finding “[t]he plaintiff is entitled to whatever benefit may exist from the prospect that such use may be permitted in the future.” (*Id.* at 691.) Intervenors submit evidence that the easement has been used in the past and may be used in the future, including the declaration of Robert Lewin detailing the importance of the easement for safety as a secondary access. (Intervenors’ Exh. P.) Intervenors have shown the easement is beneficial. Evidence that the easement is not necessary or convenient for access to Intervenors’ property is not a defense and does not negate that the easement is beneficial.

The Fitzgeralds assert as an affirmative defense that the easement was extinguished by merger or abandonment. (Answer, Twentieth Affirmative Defense). They present no evidence of merger. (See, *Zanelli v. McGrath* (2008) [extinguishment of easement by merger requires common owner has present possessory interests in both the dominant and servient estates].)

There are three elements necessary for extinguishment: (1) non-user, (2) intention to abandon, and (3) damage to the owner of the servient estate. (*Cottonwood Duplexes, LLC v. Barlow* (2012) 210 Cal.App.4th 1501, 1509 [citation omitted].) The Fitzgeralds provide evidence that the path neighbors have used is partially outside the easement depicted on the Map. (Fitzgeralds Additional Fact Nos. 17, 18.) However, partial use is not non-use. Further, a court cannot extinguish, in whole or in part, an easement based on evidence that the owner of the dominant tenement does not reasonably need, either now or in the future, the entirety of the easement. (*Id.* at 1509-1510.)

The Fitzgeralds have not submitted admissible evidence sufficient to raise a triable issue of material fact as to Intervenors’ and other lot owners’ easements over the Road depicted on the Map.

IV. INTERFERENCE WITH EASEMENT

The servient tenement owner may make use of the land that is not prohibited by the servitude and does not interfere unreasonably with the uses authorized by the easement. (*Inzana v. Turlock Irrigation District Board of Directors* (2019) 35 Cal.App.5th 429, 444–445.) In determining a claim of interference “the interests of the parties must be balanced to strike a reasonable accommodation that maximizes overall utility to the extent consistent with effectuating the purpose of the easement....” (*Id.* at 45 [citation omitted].) “Whether a particular use by the servient owner of land subject to an easement is an unreasonable interference with the rights of the dominant owner is a question of fact for the trier of fact,’ whose findings are binding upon the appellate court if properly supported by the evidence.” (*Blackmore v. Powell* (2007) 150 Cal.App.4th 1593, 1599.)

Intervenors’ UMF 9 states, “Defendants have deliberately obstructed the use of the White Oak Road Easement.” Fagan responds that this fact is “undisputed.” Intervenors’ UMF 11 states, “Defendants’ obstructions have completely blocked vehicular passage of portions of the White Oak Road Easement since late 2023, thereby depriving Intervenors and other neighbors in the Subdivision of their right to use and maintain the road.” Fagan disputes this fact based solely on Mr. Leader’s illegal removal of vegetation to get around the gate Fagan erected and the Court’s

ruling in this action precluding Fagan from constructing additional obstructions. Such evidence is not sufficient to raise a triable issue of material fact. The Court will not consider illegal conduct as evidence that raises a triable issue. Nor is this Court's order precluding further obstructions evidence that the easement was not blocked.

However, except where an easement expressly states that "the way shall be an open one, or it appears from the terms of the grant or the circumstances that such was the intention, the owner of the servient estate may erect gates across the way, if they are constructed so as not unreasonably to interfere with the right of passage." (*Van Klompenburg v. Berghold* (2005) 126 Cal.App.4th 345, 350 [citation omitted].) A gate used to keep the general public off a private road does not necessarily amount to ousting the neighbors of their rights of way. (*Vieira Enterprises, Inc. v. McCoy* (2017) 8 Cal.App.5th 1057, 1082.)

Intervenors have not presented evidence that shows the easement absolutely precludes installation of gates and fences or that Fagan's gate was not meant to keep the public off Fagan's property. Further, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c, subd. (f)(1).) Summary adjudication on a claim for damages cannot be granted if the determination of damages is left for trial. (*Paramount Petroleum Corp. v. Superior Court* (2104) 227 Cal.App.4th 226, 241.)

Intervenors pray for compensatory damages as to their interference claim. "When a person interferes with the use of an easement he deprives the easement's owner of a valuable property right and the owner is entitled to compensatory damages. The interference is a private nuisance and the party whose rights have been impeded can recover damages as measured in the case of a private nuisance." (*Moylan v. Dykes* (1986) 181 Cal.App.3d 561, 574.) The elements of a claim for private nuisance include that "the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer substantial actual damage." (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 938 [citation omitted].) Intervenors have not established damages.

The Fitzgeralds dispute that they deliberately obstructed the easement or completely blocked vehicular passage thereby depriving Intervenors of use of the Road. They rely on evidence that portions of the obstructions they erected are not on the path depicted on the Map. (Fitzgerald Separate Statement, UMFs 9, 11.) They also dispute UMF 13 which states "[a]ny change in condition of the White Oak Road Easement is the direct result of Defendants' (as servient tenement holders) actions taken to prevent use of the road." The Fitzgeralds' testimony is evidence that natural conditions have contributed to changes in the condition of the easement.

There are triable issues of material fact as to whether Fagan and the Fitzgeralds have unreasonably interfered with Intervenors' easement rights and whether Intervenors suffered substantial actual damage.

V. EVIDENTIARY OBJECTIONS⁶

A. Fitzgeralds' Objections

Declaration of Michael Tindell

Objection 1: Sustained
Objection 2: Sustained
Objection 3: Sustained
Objection 4: Sustained
Objection 5: Sustained
Objection 6: Sustained

Declaration of Kevin Irot

Objection 7: Overruled
Objection 8: Overruled

Declaration of Robert Lewin and Exhs.

Objection 9: Overruled
Objection 10: Overruled
Objection 11: Overruled

Declaration of Richard Burde

Objection 12: Sustained as to survey flags; overruled as to benefit
Objection 13: Sustained
Objection 14: Overruled
Objection 15: Overruled
Objection 16: Overruled

Declaration of Shae Luchetta and Exhs.

Objection 17: Overruled as unintelligible
Objection 18: Overruled as unintelligible

Declaration of Dawn L. Donnelly

Objection 19: Sustained
Objection 20: Sustained
Objection 21: Overruled
Objection 22: Overruled as to declarant's feelings; sustained as to characterization "Defendants' intentional scare tactics"
Objection 23: Sustained as speculative
Objection 24: Overruled

⁶ The parties are reminded of their duty to provide electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit. (CRC, rule 3.1110(f).) The Fitzgeralds and Intervenors filed hundreds of pages of exhibits without providing electronic links which makes review of the papers extremely challenging.

Objection 25: Sustained
Objection 26: Sustained
Objection 27: Sustained
Objection 28: Sustained
Objection 29: Overruled
Objection 30: Overruled
Objection 31: Sustained
Objection 32: Sustained
Objection 33: Overruled
Objection 34: Sustained

Declaration of Rob A. Garcia

Objection 35: Sustained as to location of Road; overruled as to secondary access
Objection 36: Overruled
Objection 37: Overruled
Objection 38: Overruled
Objection 39: Overruled

Videos

Objections 40 and 41: Sustained (Intervenors filed a notice of lodging Exhs. R and S which are videos of the disputed Road. There is no evidence from the person who took the videos authenticating them)

Exh. W Photographs

Objection 42: Overruled as unintelligible

B. Intervenors' Objections

Fitzgerald Exhibits

Objection 1: Sustained
Objection 2: Sustained
Objection 3: Sustained
Objection 4: Sustained

Declaration of Dawn Fitzgerald

Objection 5: Sustained
Objection 6: Overruled
Objection 7: Overruled
Objection 8: Sustained
Objection 9: Sustained
Objection 10: Sustained
Objection 11: Overruled
Objection 12: Overruled
Objection 13: Sustained

Objection 14: Sustained
Objection 15: Sustained
Objection 16: Sustained
Objection 17: Sustained
Objection 18: Sustained
Objection 19: Overruled
Objection 20: Sustained
Objection 21: Sustained
Objection 22: Sustained
Objection 23: Overruled
Objection 24: Sustained
Objection 25: Sustained
Objection 26: Sustained
Objection 27: Overruled
Objection 28: Sustained
Objection 29: Sustained
Objection 30: Sustained
Objection 31: Sustained
Objection 32: Sustained
Objection 33: Sustained
Objection 34: Sustained
Objection 35: Overruled
Objection 36: Sustained
Objection 37: Sustained
Objection 38: Sustained

Declaration of John Fitzgerald

Objection 39: Sustained
Objection 40: Overruled
Objection 41: Sustained
Objection 42: Sustained
Objection 43: Sustained
Objection 44: Sustained
Objection 45: Sustained
Objection 46: Sustained
Objection 47: Sustained
Objection 48: Sustained
Objection 49: Sustained
Objection 50: Sustained
Objection 51: Overruled
Objection 52: Overruled
Objection 53: Overruled
Objection 54: Sustained
Objection 55: Sustained

Objection 56: Sustained
Objection 57: Sustained
Objection 58: Sustained
Objection 59: Sustained
Objection 60: Overruled
Objection 61: Sustained
Objection 62: Sustained
Objection 63: Overruled
Objection 64: Overruled
Objection 65: Sustained
Objection 66: Sustained
Objection 67: Sustained
Objection 68: Sustained
Objection 69: Sustained
Objection 70: Overruled
Objection 71: Sustained
Objection 72: Sustained
Objection 73: Sustained
Objection 74: Sustained
Objection 75: Overruled
Objection 76: Sustained
Objection 77: Sustained
Objection 78: Overruled
Objection 79: Sustained
Objection 80: Sustained
Objection 81: Sustained
Objection 82: Overruled
Objection 83: Sustained
Objection 84: Sustained
Objection 85: Sustained
Objection 86: Sustained
Objection 87: Sustained
Objection 88: Sustained

Exhibits Referenced in Fitzgerald Declarations but Not Submitted in Opposition to this Motion

The Court will not consider exhibits that have not been submitted as evidence, nor will it rule on objections to such exhibits.

IV. RULING

Intervenors' motion for summary adjudication of the Third Cause of Action for Declaratory Relief is granted. The Court finds and declares that White Oak Road is a private easement in favor of all owners of land within the 1918 Map and their guests and invitees. "Normal future uses [of an

easement] are within the reasonable contemplation of the parties and therefore permissible, but un contemplated abnormal uses, which greatly increase the burden, are not.” (*Red Mountain, LLC v. Fallbrook Public Utilities District* (2006) 143 Cal.App.4th 333, 350.) Whether a particular use of an easement by either the servient or dominant owner unreasonably interferes with the rights of the other owner is a question of fact. (*Id.*) The Court cannot speculate as to future uses or make preemptive judicial declarations.

The motion for summary adjudication of the First Cause of Action for Interference with Easement is denied. The Court finds that there are triable issues of material fact as to whether natural conditions have negatively impacted Intervenor’s ability to use the easement, whether the maintenance of gates blocking public access may be a reasonable use by Fagan and the Fitzgeralds if it does not obstruct the private easements, and Intervenor’s substantial actual damages.